

Court No. - 3

Case :- WRIT - C No. - 19911 of 2022

Petitioner :- Mahtab Ali

Respondent :- Executive Engineer Electricity Distribution And 2 Others

Counsel for Petitioner :- Yashpal Yadav, Sunil Kumar Yadav

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Chandra Kumar Rai, J.

Heard learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Narendra Kumar Tiwari, learned counsel for the respondent No.1.

This writ petition has been filed praying for the following relief:

"a) Issue appropriate writ, order or direction in the nature of certiorari, call for record and quashed Recovery Certificate issued by the respondents Executive Engineer to Respondent District Collector and endorse by Tehsildar/ Recovery officer on dated 28/02/2022.

b) Issue any other writ, order or direction, in the nature of mandamus and direct the respondent Executive Engineer to withdraw the recovery certificate issued to respondent District Collector within a specified time framed."

Sri Narendra Kumar Tiwari, learned counsel for the respondent No.1/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under **Para 6.8 of U.P. Electricity Supply Code, 2005** before the respondent No.1, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.1 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 27.7.2022

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